

Dr. Radhey Shyam vs Radhey Shyam on 12 January, 2026

CS SCJ 842/25

DR. RADHEY SHYAM VS. RADHEY SHYAM

IN THE COURT OF SH. ANKIT MITTAL, CIVIL JUDGE-01
(SOUTH) SAKET COURT, NEW DELHI

Civil Suit No :- 842/25
CNR no. :- DLST03-001533-2025

DR. RADHEY SHYAM
S/o Shri Mehender Singh
R/o A-42, Harswaroop Colony,
Fatehpur Beri,
New Delhi-110074

..... PLAINTIFF

VERSUS

RADHEY SHYAM
R/o A-38, Near Ramleela Maidan,
Bhati Mines,
New Delhi-110074

..... DEFENDANT

SUMMARY SUIT UNDER ORDER XXXVII FOR
RECOVERY OF RS. 1,50,000/- ALONGWITH PENDENTE
LITE AND FUTUR INTEREST

JUDGMENT

1. This is a summary suit for recovery of liquidated sum of Rs. 1,50,000/- along with pendente lite and future interest @ 18% p.a. from the date of disbursement of the loan amount bounced charges and legal expenses.

2. Briefly, in the plaint, it is the case of the plaintiff that defendant had approached the plaintiff for friendly loan of Rs.

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(Ankit Mittal)

CJ-01/(South) Saket Court/New Delhi DR. RADHEY SHYAM VS. RADHEY SHYAM 1,50,000/- for personal use. Considering the urgent requirement of defendant, plaintiff gave the friendly loan for an amount of Rs. 1,50,000/- to the defendant and defendant promised to pay the principal amount after 06 months along with interest @ 18% p.a. It is averred that defendant defaulted in paying the interest and in discharge of his legal liability, defendant issued three cheques bearing no. 234428 dated 02.06.2024, 234424 dated 05.06.2024 & 234425 dated 08.06.2024 to the plaintiff with assurance that same will be honoured upon presentation. However, upon presentation, the cheques were returned dishonoured with remarks "funds insufficient". It is averred that plaintiff informed the defendant about the same to which, defendant took few day time and promised the plaintiff that payment will be done. Thereafter, plaintiff again presented the said cheques, however, same were returned dishonoured with remarks "payment stopped by drawer". Consequently, a legal notice dated 21.01.2025 was issued upon the defendant. Despite receipt of notice, defendant neither replied nor paid the loan amount. It is averred that plaintiff also filed a case u/S 138 NI Act but due to technical error, the case was withdrawn by the plaintiff. Having left with no other option, the present suit has been filed seeking relief mentioned in para no. 1 of the judgment.

3. The defendant was duly served with upon the summons on 10.12.2025. Further, RC of the summons was received back refused, however, defendant did not file any appearance before this Digitally signed by ANKIT Page no. 2 of 4 ANKIT MITTAL MITTAL Date:

2026.01.12 16:51:23 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi DR. RADHEY SHYAM VS. RADHEY SHYAM Court within 10 days from the service of summons in terms of order XXXVII CPC. Therefore, the present suit has been proceeded u/O XXXVII Rule 2(3) CPC.

4. Since more than 10 days had elapsed after service of summons and none appeared on behalf of defendant, the plaintiff is entitled to decree forthwith under the Scheme of Order 37 CPC. As laid down under Order 37 Rule 2 (3) CPC, on default of entering the appearance by the defendant, the allegations in the plaint shall be deemed to be admitted and the plaintiff shall be entitled to a decree for any sum, not exceeded the sum mentioned in the summons together with the interest at the rate specified upto the date of decree and costs. The Court has relied upon the judgment of Hon'ble Delhi High Court in the matter of Comba Telecom Ltd. Vs. S. Tel Pvt. Ltd. 2016 (228) DLT 713.

5. Even otherwise, on the aforesaid averments made by the plaintiff in the plaint are duly supported by the documents and affidavit which have been placed on record by the plaintiff along with the plaint and same are stated as under:-

(a) Original cheques bearing no. 234428 dated 02.06.2024, 234424 dated 05.06.2024 & 234425 dated 08.06.2024 drawn at Central Bank of India Udyog Bhagwan, Delhi Branch;

(b) Return memo dated 21.06.2024 & 16.07.2024 corresponding to cheques;

(c) Legal notice dated 21.01.2025 along with postal receipt and Digitally signed by Page no. 3 of 4 ANKIT ANKIT MITTAL Date:

MITTAL 2026.01.12 16:51:30 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi DR. RADHEY SHYAM VS. RADHEY SHYAM proof of delivery; and

(d) Copy of aadhar card of the plaintiff.

6. Thus, in the absence of any reason to disbelieve the averments of plaint and annexed documents in that regard and as per the scheme of Order XXXVII CPC, since no appearance has been filed by the defendant despite service of summons, therefore, the present suit stands decreed for a sum of Rs. 1,50,000/- alongwith rate of interest at the rate of 8% per annum from the date of filing of from the date of disbursement of the loan amount bounced charges and legal expenses.

7. Let decree sheet be drawn up accordingly.

8. File be consigned to record room after due compliance. Pronounced in open court:

Digitally signed by ANKIT ANKIT Date:

MITTAL MITTAL 2026.01.12 Dated: 12.01.2026 16:51:41 +0530 (Ankit Mittal) CJ-01(South)Saket/New Delhi/12.01.2026 Note:- This Judgment contains four pages and all the pages have been checked and signed by me. Digitally signed by ANKIT ANKIT MITTAL Date:

MITTAL 2026.01.12 16:51:44 +0530 (Ankit Mittal) CJ-01(South)Saket/New Delhi/12.01.2026 Digitally signed by ANKIT ANKIT MITTAL Page no. 4 of 4 MITTAL Date:

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